

Pushpa Devi v. State of U.P.

Allahabad High Court · Division Bench · 21 September 2024 · 2024:AHC:154530-DB · WRIT - C No. - 28049 of 2024 ·
Writ disposed; objection under s.126 and Supply Code directed

HEADNOTE

Writ against electricity assessment notices not entertained where the consumer had filed no objection and no Section 126 assessment had yet been made. Petitioner left to object within two weeks; prescribed authority to decide under Section 126 of the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. Notices to abide that proceeding.

FACTUAL SUMMARY

Pushpa Devi challenged notices dated 25 and 29 May 2024 against connection nos. 5058373000 and Connection No. 2, seeking to quash them as fabricated and a mandamus to decide her objection under clause 6.5. She alleged that inspection and provisional assessment had not followed Section 126 and that she should not be relegated to a Section 127 appeal. The licensee stated that notices had issued, the petitioner had filed no objection, and no Section 126 assessment had yet been made.

HOLDING-UNITS

INTERPLAY · EA2003::126

writ against assessment notices — objection first

HOLDING

Where assessment notices had issued but the consumer had filed no objection and no assessment under Section 126 had yet been made, the High Court declined to entertain a writ to quash the notices. The petitioner was left to file an objection within two weeks, to be decided by the prescribed authority in accordance with Section 126 of the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005; the notices remaining subject to the outcome of that proceeding. ¶ 5-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Writ against electricity assessment notices not entertained where the consumer had filed no objection and no Section 126 assessment had yet been made. Petitioner left to object within two weeks; prescribed authority to decide under Section 126 of the Electricity Act, 2003 read with the U.P.. ¶ 5-6

relegate-to-statutory-remedy Writ against electricity assessment notices not entertained where the consumer had filed no objection and no Section 126 assessment had yet been made. Petitioner left to object within two weeks; prescribed authority to decide under Section 126 of the Electricity Act, 2003 read with the U.P.. ¶ 5-6

s126-procedural-strictness-notice-and-hearing Writ against electricity assessment notices not entertained where the consumer had filed no objection and no Section 126 assessment had yet been made. Petitioner left to object within two weeks; prescribed authority to decide under Section 126 of the Electricity Act, 2003 read with the U.P.. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 25.05.2024 AND 29.05.2024 NOTICES AND WHETHER INSPECTION OR PROVISIONAL ASSESSMENT COMPLIED WITH SECTION 126

¶ 5

NOT DECIDED — WHETHER THE CONSUMER WAS REQUIRED TO PURSUE A SECTION 127 APPEAL RATHER THAN A WRIT

¶ 3-5

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.